

25STCV27612 25STCV27612

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 25STCV27612 Hearing Date: July 2, 2026 Dept: 529

DANIEL J SEELEY vs GENERAL MOTORS, LLC

defendant general motors llc's MOTION FOR
COMPLIANCE PURSUANT TO C.C.P. §871.26 AND REQUEST FOR SANCTIONS

Date

of Hearing: July 2, 2026 Trial

Date: None

set

Department: 529 Case No.: 25STCV27612

Moving

Party: Defendant General Motors

LLC

Responding

Party: Plaintiff Daniel J Seeley

BACKGROUND

This is a lemon law action. On September 19, 2025, Plaintiff Daniel J Seeley filed a complaint against General Motors, LLC for various violations of the Song-Beverly Consumer Warranty Act as well as Fraudulent Inducement. On February 3, 2026, Plaintiff filed a First Amended Complaint.

[Tentative] Ruling

Defendant

General Motors LLC's Motion for Compliance Pursuant to C.C.P. §871.26 and Request for Sanctions is MOOT.

discussion

Defendant General Motors LLC moves this court for an order for compliance requiring Plaintiff Daniel J Sleely to appear and comply with the initial deposition of the Plaintiff under Code of Civil Procedure section 871.26(c)(1). GM also moves this court for an order imposing monetary sanctions against Plaintiff's attorneys of record, Strategic Legal Practices, APC, in the sum of \$1,500.00.

"Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours." (CCP § 871.26(c).)

Defendant GM argues Plaintiff has failed to comply with the requirements of Code of Civil Procedure section 871.26. On September 19, 2025, Plaintiff filed his suit against GM and on January 2, 2026, GM filed its responsive pleading in the form of its Demurrer to the complaint. Along with its responsive pleading, GM served a meet-and-confer letter to Plaintiff's noting GM was issuing a notice for Plaintiff to appear for deposition and indicated if Plaintiff was unavailable to appear, to please contact their office. (Stark Decl. ¶¶4, Exh. A.) As part of the responsive pleading e-mail, GM also attached a Notice of Deposition, for Plaintiff to appear for deposition on March 2, 2026. (Stark Decl., ¶ 5, Exh. B.) However, on January 2, 2026, Plaintiff's counsel objected to the Notice of Deposition indicating the deposition was unilaterally noticed for a time and date which Plaintiff and/or Plaintiff's counsel is unavailable. (Stark Decl., ¶6, Exh. C.) On April 29, 2026, counsel for GM sent a follow-up e-mail to Plaintiff's counsel requesting dates for Plaintiff's availability for deposition. (Stark Decl., ¶ 7, Exh. D.) GM has still not received a reply from Plaintiff's counsel. (Stark Decl., ¶ 8.) The statutory deadline to conduct the deposition of Plaintiff was May 1, 2026.

In opposition, Plaintiff argues the motion is moot and moreover, the motion is premature as the statutory deadline has not yet expired. First, Plaintiff contends Plaintiff has confirmed availability for deposition on July 8, 2026 at 2:00 p.m. and remains ready, willing, and able to appear. Next,

Plaintiff contends the 120-day deposition deadline under Code of Civil Procedure section 871.26(c) runs from the filing of the "answer or other responsive pleading" not from a demurrer. As a result, the 120-days did not begin to run until GM filed its Answer on May 5, 2026.

First, the court finds the motion is not premature. As noted by GM, a demurrer is a responsive pleading under the 871.26 given the legislative intent. However, as the parties have now agreed to a deposition time and date, the court finds the motion moot.

The court briefly notes Plaintiff's contention with service. The parties are to meet and confer to establish mutually agreeable expectations regarding how communication and services will be conducted going forward. The court expects the parties to work out these details without further court involvement.

Sanctions

Both parties seeks sanctions in the amount of \$1,500.00 for having to bring the motion and for having to oppose the motion. The court declines to award sanctions to either party.